



POLICE DEPARTMENT

January 22, 2013

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Fernando Colon
Tax Registry No. 903652
46 Precinct
Disciplinary Case No. 2010-2042

The above-named member of the Department appeared before me on September 19, 2012, charged with the following:

1. Said Police Officer Fernando Colon, assigned to the 46th Precinct, on or about and between August 27, 2009 and August 28, 2009, was absent without leave from assignment without authority.

P.G. 205-18 – ABSENT WITHOUT LEAVE

2. Said Police Officer Fernando Colon, assigned to the 46th Precinct, while on-duty, on or about September 13, 2009, was absent from assignment without permission or police necessity.

P.G. 203-05, Page 1, Paragraph 2 PERFORMANCE ON DUTY GENERAL

3. Said Police Officer Fernando Colon, assigned to the 46th Precinct, while on-duty, on or about May 4, 2010, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said police officer was discourteous to New York City Lieutenant Joyce Williams, in that said police officer did speak to Lieutenant Williams in a tone inappropriate to speaking to a supervisor.

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT

The Department was represented by Javier Seymore, Esq., Department Advocate's Office, and Respondent was represented by Craig Hayes, Esq.

Respondent, through his counsel, entered a plea of Guilty to Specification Nos. 1 and 2, and testified in mitigation of the penalty. Respondent, through his counsel, entered a plea of Not Guilty to Specification No. 3. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent, having pleaded Guilty, is found Guilty of Specification Nos. 1 and 2. Respondent is found Not Guilty of Specification No. 3.

SUMMARY OF THE EVIDENCE PRESENTED

The Department's Case

The Department called Lieutenant Joyce Williams as its sole witness.

Lieutenant Joyce Williams

Williams, a five-year lieutenant, is a 17-year member of the Department. She is currently assigned to the Detective Borough in the Bronx and has been at this assignment for two years. Prior to her current assignment, Williams was assigned to the 46 Precinct for three and a half years.

Williams testified that while assigned to the 46 Precinct, she was the first platoon commander. Her duties were to supervise the midnight platoon, to ensure it functioned properly, and to ensure that officers responded to their jobs.

On May 4, 2010 Williams' tour started at 11:00 p.m. and ended at 7:45 a.m. Around 11:20 p.m. she conducted roll call. Roll call usually told her the officers on duty, their assignments, and their meal time. It also told her anything going on in the precinct,

and anything that happened during the prior tour. Williams also gave the officers their assignments during roll call. The night in question, Williams gave Respondent the assignment of transport officer.

Transport officers are responsible for the transport of prisoners to Central Booking, or "whatever precinct is taking prisoners for that evening." After roll call, officers on the transport assignment determine how many prisoners are ready for transport, run a New York State Identification check (NYSID) on the prisoners and see if their fingerprints came back. If the prisoners are ready, the officers "set them up" for their transport. Occasionally, narcotics obtained through arrests on the day tour are ready to be transported before the prisoner's transport, so the transport officers will take the narcotics and prepare them for transfer to the Borough. When the narcotics are removed from the prisoner, they are "vouchered" and placed in "the mailbox that we keep behind the desk." That night, Williams expected Respondent to prepare the prisoners and the narcotics.

Williams "went behind the desk and got the roll calls ready." She usually kept a copy of the roll call, made a copy for the supervisors who went out on patrol, and for the officer "on the desk." She made the copies so everybody could know what others were doing for that tour. Williams explained that administratively she also gave the other officers copies of the roll call to ensure all jobs that came in were handled.

May 4, 2010 was a Tuesday night. Williams did not recall if it was a busy night at the precinct, but stated a Tuesday could be busy. After she completed her administrative duties, Williams did a follow-up check on the officers in the command. Williams explained that she would find out when cars would return so she could send the

officers on her tour out in the field. She also made sure the narcotics were transported and the prisoners were ready.

On the night of the incident, Williams waited an hour after she gave assignments to do a follow-up check. Williams expected that Respondent would have started his assignment by the time she checked. Williams asked Respondent if the prisoners or the narcotics were ready for transport. Respondent appeared to be upset or “pissed off” and Williams asked why. Respondent yelled from the other side of the desk, in a “discourteous and inappropriate manner” that the “narcotics aren’t ready yet.” Other supervisors and police officers were present when Respondent allegedly yelled at Williams. Williams wrote Respondent up based on his actions.

During cross-examination, Williams stated that Respondent did not repeat the statement he made to her. She did not recall if she was in front of or behind the desk when she interacted with Respondent. Williams estimated that she was 20 feet away from Respondent at the time of the incident. Williams was not sure how many other officers were present. At that time of night, Williams generally had an assistant desk officer and telephone switchboard operator (TS) present. Williams did not recall if Respondent sat or stood during the incident, but he could have been sitting. Nor did she recall Respondent’s facial expression during the incident. Williams judged Respondent’s mood based on the tone of his voice and his history with her and other supervisors.

Williams asked Respondent about the narcotics, because she did not know what he was doing. Williams acknowledged that Respondent did not use profanity during the incident. Williams did not recall if Respondent stated the words, “Hey Lieu” before he told her the narcotics were not ready. Williams also did not recall if Respondent changed his physical position during the incident. She acknowledged that her report never stated

that Respondent jumped up and hit the desk. She did not recall if she sat and worked next to Respondent prior to the incident. Williams acknowledged that Respondent did not get into her personal space or into her face during the incident.

Williams conceded that when an officer commits an act of misconduct in her presence, as a supervisor, she can handle it in a number of ways. She acknowledged that there is not necessarily a requirement that she "write somebody up" for a violation she witnesses. Williams clarified that it was her choice whether or not to write someone up. She acknowledged that she could have pulled Respondent aside, and spoke with him "one on one" about the incident. Williams explained that usually she would handle a discourteous officer in this manner if it was their first or second offense but, "not fifth, sixth, tenth." She clarified that her decision to write Respondent up was based on her past experience with him.

Williams believed she had given Respondent two prior command disciplines (CDs). Williams did not care if Respondent directed his statements at her or someone else; she stated he is "an adult" who should have addressed her in the "proper way." She explained that when she asked him a question, his response would have to ultimately be directed towards her.

Williams stated that the desk area could have anywhere from three to fifteen people, including civilians, around it on any given night. Williams acknowledged that people could have conversations with each other while standing around the desk, but she did not think Respondent raised his voice so that she could hear him over others. Williams estimated that she was about 20 feet away from Respondent at the time of the incident, but did not think that affected Respondent's decision to raise his voice.

Based on Respondent's history with her, Williams believed that he raised his voice because he was not happy she asked the question. Williams did not believe every instance of Respondent's raised voice indicated discourtesy, but reiterated that in this instance discourtesy was present. Williams acknowledged Respondent's intentions could depend on the words he used, if profanity was used, how close he was, if he threatened or insulted her or if he challenged her authority. Williams acknowledged that in this instance, Respondent never threatened her, used profanity, got into her face or challenged her authority, but also stated that a person did not need to use profanity to be rude or disrespectful. When asked whether she would consider another officer who responded in the same way as discourteous, Williams stated, "It depends." If another officer acted in the same manner with no history of discipline, Williams acknowledged that she may have pulled him aside to have a word with him instead of pursuing formal discipline.

Williams clarified that she wrote Respondent said, "These narcotics are not ready," but she did not remember if he said more. She did not recall if she gave Respondent a chance to explain why he made the statement, but if she did talk to him immediately after the incident, and it is unlikely, that she would include that conversation in her report.

Williams did not remember who else was present during the incident, but stated that Sergeant Feliciano or Police Officer Bredo may have been present. Bredo worked with Respondent that night.

Respondent's Case

Respondent testified in his own behalf.

Respondent

Respondent, a 19-year member of the Department is currently assigned to the 46 Precinct in the Bronx, where he has been assigned his entire time with the Department. Prior to his employment with the Department, Respondent was on active duty as a corporal with the United States Marine Corps from 1982-86. Respondent was also in the Air Force Reserves for 24 years as a technical sergeant. He recently retired from the military after 28 years of service.

Respondent offered mitigation and pleaded guilty to the first two specifications. The first specification alleged that Respondent was absent without leave from his assignment on August 27 and 28, 2009. Respondent stated that he missed those days because he was out sick [REDACTED].

Respondent explained that prior to the missed days, he saw a surgeon in the Medical Division for a follow-up appointment. The surgeon gave Respondent a slip when he left. Respondent recalled that the slip had instructions for him to return to the Medical Division. The slip crossed out all available options, and in the remarks column it had the date he was supposed to return for reevaluation, but he did not recall what else the slip said. The medical clerk instructed Respondent to follow what was on the slip, but he only recalled her explaining the date for reevaluation. Respondent acknowledged he was eager to get out of the office.

Respondent did not know that he was supposed to return to work on August 27 and 28 on a modified basis until after he received a phone call telling him to report back to his command in a limited capacity. The phone call took Respondent off guard. He was not told he was needed immediately, just that he was listed as limited. Respondent

said that two days after the call, after he was evaluated; he went in and that was when he was clearly told that he was supposed to be on duty the two days prior.

Respondent conceded that when he looked closely at the form, it in fact stated that he was to return to work in a limited capacity. He admitted that the error was an oversight on his part that could have occurred because he was in continuous discomfort at the time. Respondent explained that he could not sit or stand for any prolonged period; he was on treatment and he constantly lied down. His intention was not to miss work; he was just "trying to get better," and just failed to understand the form.

The second specification alleged that on September 13, 2009, Respondent was absent from his assignment for 40 minutes after roll call. Respondent explained that on that date he was on "midnights." The officers on the start of the midnight tour often had trouble with parking. This was because many other units were already in for duty. Usually the officers on the midnight tour double parked their cars along the side of the command. When the officers from previous tours went to leave their parking spots, the officers on the midnight tour would move their cars into the opened spots. As soon as the midnight roll call finished, Respondent moved his car.

On the way back to the command, Respondent realized that he did not have his Activity Log. He had to "backtrack" his steps to try and find the log. He checked the car and looked where he initially parked the car, to the place where he finally moved it to. He looked underneath the car and asked other officers if they found it. Respondent was suspicious that someone on the street would find it and fail to come forward. He stated he looked around to see if anybody, "looked like they may have possibly had something belonging to me," but he got no reaction. There were no calls on his cell phone either.

He eventually found the log in the car on the side of the door. He said it fell there when he rushed back to the command after he parked his car.

Respondent discussed the May 4, 2010 allegation of alleged discourtesy to Williams. Respondent explained that night he and his partner, Officer Bredo-Blanco were assigned to deal with prisoners and narcotics. Most of the time Respondent dealt only with the prisoners, but on this night he also prepared the narcotics prior to “getting the prisoners out.” The narcotics were usually taken to the Bronx Borough to be disposed of or handled. Respondent explained that it was not his duty to get the narcotics prepared, just to “get the packet” and take it to the Borough.

Williams gave Respondent and Bredo specific assignments; Bredo was assigned to do NYSID checks. Respondent explained that NYSIDs were done so Albany could get the fingerprints and the prisoners can be taken to Central Booking. At the time, Bredo had just returned from delivering her first baby. Bredo was on the phone with her mother discussing the baby when Williams gave her the assignment. Respondent told Bredo, “Don’t worry about it, narcotics is not ready yet. I’ll go do the NYSIDs.” Respondent did not expect that Bredo knew how to do the NYSIDs, because most officers are not familiar with them, unless they are an officer like himself that constantly deals with prisoners.

Respondent then went behind the desk to start the NYSIDs. Respondent started the NYSIDs for “time management” since the narcotics were not ready. Respondent stated that he would have been aware if the narcotics were ready, because they would have been packaged for him to take. At the time, Williams was behind the desk near the TS and Bredo was on the other side of the TS. Respondent logged into the system and heard Williams clarify that she wanted Bredo to do the NYSIDs. Williams was on the

opposite side of Respondent's desk, which was taller than his head while he was seated. Respondent could not see who he spoke to unless he stood up or pushed back his seat. Respondent pushed his seat back, and stated that the "narcotics run is not ready yet."

Respondent estimated that Williams was 20 feet away from him at the time of the incident. Respondent conceded that he raised his voice when he made the statement. He spoke in a loud voice so he "could project over the other people that are in the room and at the desk." He explained that at the start of a new tour, the earlier tour is still in the command. Officers often "stand around" after their tour is over; some have to wait for the patrol from the previous tour to come in. In addition, officers from the other units are "running around," and making arrests. All of these factors meant that a tour change was a hectic time. Respondent characterized the day of the incident as a busy day because several officers were present and there were many conversations going on between them.

Respondent explained that after he made the statement, nothing else occurred; he continued his assignment. He was not told to stop and Williams did not ask to speak to him or meet with him about what he said. The desk sergeant, whose name he did not recall, was the only other officer within earshot when he made the statement. The desk sergeant did not speak to him or reprimand him after the incident. No other supervisor said anything to him about the incident.

Respondent did not see Williams again until an hour and a half after the incident when Sergeant Feliciano radioed him to come to the desk so Williams could speak to him. Respondent went with Feliciano to an office right behind the desk. Williams walked in and stated Respondent was brought in because she was giving him a CD. Respondent asked her what he did to receive a CD. Williams told him it was because he yelled. Then she allegedly walked out of the room. Respondent looked at Feliciano who

was “puzzled.” Respondent stated Feliciano shrugged his shoulders and “didn’t know what to say,” and “that was it.”

Respondent stated that Williams did not speak with him or make an attempt to speak with him after the incident about what occurred. Respondent was never presented with a command discipline for the allegation; he was just served with the Charges and Specifications.

Williams was Respondent’s platoon commander and he saw her often during a tour. When asked about his disciplinary history with Williams, Respondent stated he did not know if she put him into a log for minor violations. However, he received assignments that were “foot posts,” for example sitting on hospitalized prisoners. Respondent explained that these assignments were not favorable for a veteran officer and not common on midnight tours.

Respondent explained some of his history with Williams. He was a union delegate from 2002 to 2010. As a delegate, he defended officers who had concerns about their platoon commander. Respondent had several exchanges with Williams in defense of other officers. One incident stood out clearly. A narcotics officer was the subject of an official Department interview for an unspecified incident. Respondent, Williams and the officer had to wait for the officer’s union delegate before they could discuss the alleged incident. Respondent claimed he had to repeatedly tell the officer to stay in the office, and tell Williams to refrain from questioning the officer without the delegate present. Respondent allegedly explained to Williams that they were not going to answer her questions until representation arrived. After several attempts to clarify his explanation to Williams, Respondent stated she got upset, and said, “You do not know what you’re doing” and walked away.

As a union delegate, Respondent also made logs to the Internal Affairs Bureau (IAB) on behalf of other police officers regarding the actions of superior officers. Respondent recalled one instance where he was called at home by an officer who claimed she was attacked while on duty by an unnamed lieutenant at the 46 Precinct. He met the distraught and crying officer who explained her version of what transpired. Respondent made a call to IAB, which sparked an investigation into the unnamed lieutenant's conduct.

Respondent stated that he was treated differently in the 46 Precinct after he reported the incident. He explained that "every single little thing" was addressed to him in a negative manner, including his assignments, any time he was at fault for something or when he was asked to do a task. Respondent felt that he was berated on more than one occasion. He explained that word was out that he was the one who made the call against the unnamed lieutenant. Respondent did not deny or hide from the fact that he made the call, but he also did not "hold it as a badge of courage." He explained that he "did what he had to do at the time."

Respondent stated he felt the incident with Williams occurred "along with, like I said, a rash of what I feel were unnecessary actions committed by supervisors" against him. Respondent stated he received more CDs after he reported the unnamed lieutenant than ever before, but did not elaborate on specific instances. He explained that this was the only time he has ever received such "a rash of any type of disciplinary charges." Respondent felt his years in the armed forces have taught him respect for rank. He had been waiting for his opportunity to address these incidents, and he felt this testimony was that chance.

Respondent stated the only reason he raised his voice towards Williams was so that she could hear his statement. He spoke over people to clarify that he was doing the assignment and he only said it once. Respondent acknowledged he was not assigned to the task of preparing narcotics; he was only responsible for their transport to the Borough. However, he had to wait because the officers assigned to the task did not have the narcotics ready. Respondent decided to prepare the narcotics since they are usually prepared by an Assistant to the Desk Officer (ADO), and the officer who was handed the NYSID task was not familiar with their preparation.

Respondent stated that in his experience, when an officer was discourteous to a supervisor, they were addressed immediately and it did not become a big incident. The officer went to "hash out whatever the issue" was somewhere with the supervisor. Respondent reiterated that this did not happen with him.

During cross-examination, Respondent acknowledged that the unnamed lieutenant he reported is currently a captain for the Department. Respondent admitted that he never requested a transfer from the 46 Precinct, nor did he attempt to change his midnight tour assignment to avoid contact with Williams. Respondent believed that if supervisors that "have it out for you," they would be able to "get" you regardless of your tour.

Respondent clarified that he was not assigned to prepare the narcotics, just to do the narcotics run. He could not do the narcotics run until the narcotics were tallied and properly packaged by the officer assigned to the task. Williams assigned the task of preparing the NYSIDs to Bredo, but Respondent ended up doing it instead.

Respondent reiterated that he spoke to Williams in a non-conversational elevated tone. He felt that it was appropriate to yell out to her, because at the start of the tour a lot of people come in and leave the command. Respondent backed his chair away from the

computer so Williams could see him address her. Respondent conceded that all he would have needed to do to address Williams directly was walk across to the desk, but he did not stand up and approach her, because of the chaotic pace. He did not think his actions were discourteous at all. He wanted to get tasks completed expeditiously, because preparing the prisoners takes a long time. Respondent thought a long time passed between the incident and the confrontation in the office, because Williams felt disturbed by the way he spoke. However, if his error was brought to his attention, he would have understood the rule; and if Williams told him she did not want him to do something, he would have followed instructions.

In regard to the incident at the start of the tour September 13, 2009, Respondent admitted that he did not address his supervisor "directly" to explain his absence. He did not want to stop the supervisor from her task, because at the start of the tour, supervisors receive "instructions." Respondent never left a note with the desk officer, nor did he call any other officers present that day to inform them that he was going to his vehicle. Respondent claimed he did not address the desk officer, because the officer usually had "his head buried between" instructions from the previous tour and what needed to be prepared for his own tour. Respondent stated sergeants usually nod when addressed, and continue their tasks. As long as enough people heard an officer statement, the officer usually got a "thumbs-up" to walk out. Respondent claimed he said aloud that he was going to his car with "enough address so that a number of people could have heard." He expected those that heard him to explain where he was to others who asked about him. He explained that this scenario occurs often on a tour, the midnight tour in particular.

Respondent "backtracked" to find his memo book because he did not want to tell a supervisor that he misplaced it. Respondent thought he was "in the clear" to spend time

looking for his memo book, because no one at the command called him on his cell phone looking from him. Respondent explained that everyone in the command knew how to reach him, because there were three other union delegates that had his cell phone number posted in "big bold black letters." Respondent acknowledged that had he known the consequences, he would have made his absence clearer to someone.

With respect to the absences on August 27 and 28, 2009, Respondent admitted that he did not attempt to call into the command to report that he was not coming in for duty. Respondent received a call from Williams regarding his absence on August 27. During the call, Williams asked him why he was not at work and he replied that he was out sick. She told him that he is on limited duty, and he replied that he had a slip that told him to go to the Medical Division for a reevaluation. Respondent stated nothing else was discussed, and Williams never ordered him in. Respondent felt that if he was supposed to go in, the supervisor would have instructed him to come in. In addition, if the command wanted to override his sick day he would not have objected. Respondent stated that he did not receive a phone call from the command on August 28.

Respondent did not recall any other time in his career that he had a limited duty assignment based on his health. He added that he does not call out sick that often. He recalled that he previously had [REDACTED] that kept him out of work, but did not know if he was on limited duty. Respondent recalled the Medical Division ultimately reasserted what Williams told him about his limited status, but he could not recall when.

Respondent never had to deal with an absent officer on limited duty as a union delegate. He never asked another officer or supervisor about the notice he received from the Medical Division. When Respondent saw the surgeon, he expected to leave with instruction on his medical status. He explained that the notice should have told him

where to appear again, and since none of the boxes were checked on the notice, he assumed that he was out sick until the reevaluation. Respondent admitted that he never followed up on Williams's call, but he imagined that someone else did.

Upon questioning by the Court, Respondent stated that a midnight tour typically starts at 11:15 p.m. and roll call is done somewhere between 11:25 p.m. and 11:30 p.m. Roll call lets out at 11:35 p.m. or 11:40 p.m. depending on the time of day or day of the week. Respondent did not know when he arrived for his tour on May 4, 2010, but he assumed it was 11:15 p.m. since it was a midnight tour.

Respondent did not recall any other incidents with Williams regarding how he spoke to her. Respondent described Williams as a "straightforward type of individual, so what you see is what you get." He also characterized her as "all business." Respondent clarified that she was not the kind of supervisor that took nonsense, compared to other supervisors Respondent had experience with over the years. He said his experience taught him how to conduct himself with Williams.

Respondent acknowledged the possibility of past incidents that caused Williams to see him in an "unfavorable light." In his delegate capacity, Respondent had to constantly approach her about whatever concerns other officers had. He had to confront Williams, even if he had no involvement in the incident and even if Williams did not want to address issues another officer had with her. Thus, Williams may have a better memory about how many incidents occurred between them. Respondent stated that he only recalled a few specific incidents with her, not all of them. Respondent reiterated that he had to confront her because he advocated for the officer who approached him with an issue and she was the platoon commander.

FINDINGS AND ANALYSISSpecification No. 1

Respondent stands charged herein with being absent without leave on or about and between August 27, 2009 and August 28, 2009. Respondent has pleaded Guilty to this Specification. Respondent testified that on those dates, he was suffering [REDACTED]. He had been to the Medical Division, and upon the end of his visit there, he was given a slip of paper (DX 1). Respondent testified that he also spoke to someone at the Medical Division who informed him that he had a date to return for reevaluation there. Respondent said he went home, never fully read the slip and thought he was still out on sick leave, especially since he was not feeling well. While this account seems plausible, Respondent did hear from his command on August 27, 2009. Respondent acknowledged that he received a call from Williams advising him that he should have been at work on that date in a limited capacity. Respondent did not review his slip, contact the Medical Division for clarification or do anything else with that information other than stay out from work an additional day, August 28, 2009.

Thus, the Court does not find mitigating circumstances with respect to Specification No 1.

Specification No. 2

Respondent stands charged herein with being absent from his assignment while on duty without permission or police necessity on September 13, 2009. Respondent pleaded Guilty to this Specification. Respondent explained that after roll call, it was a common practice for members of the service working the midnight tour to move their vehicles to a proper parking space after members from the previous tour departed the

command at the end of their tour. Respondent stated that after moving his vehicle to a spot, he realized that he did not have his Activity Log and began to retrace his steps in an effort to locate it. He eventually found his Activity Log in the side of his vehicle, but was absent from his assignment for approximately 40 minutes.

The Assistant Department Advocate noted that Respondent taking a few minutes to park his vehicle was not the misconduct. It was the extended period that he took, without notifying a superior in the command that he was trying to locate his Activity Log. Respondent explained that since his telephone number was at the desk, because he was, at the time, a delegate for the Patrolmen's Benevolent Association (PBA) and no one called him, he did not realize that anyone was looking for him.

At the point that Respondent made the determination that he would retrace his steps in an effort to locate his Activity Log before it could be stolen, for example, he should have notified someone at the command about what was going on. Even a quick call to the desk would have put his supervisors on notice that he was searching for his Activity Log outside of the command so that he could be ready to go out on patrol.

This lack of communication between Respondent and his superiors, led to the absent from assignment Charge and Specification. The onus was not on his superiors to reach out to him, but rather for Respondent to advise them of what was transpiring. Accordingly, this tribunal does not find any mitigating circumstances with respect to Specification No. 2.

Specification No. 3

Respondent stands charged herein with engaging in conduct prejudicial to the good order, efficiency or discipline of the Department in that on May 4, 2010 while on

duty he was discourteous to New York City Lieutenant Joyce Williams in that he spoke to her in a tone inappropriate to speaking to a supervisor.

By all accounts, Williams wanted to know what the delay was with transport of the prisoners and the narcotics, and she voiced this concern to Respondent in the 46 Precinct Station House. Respondent testified that at the time, he was working and seated at a desk lower than the desk officer's station. He pushed his chair back from where he was seated so that Williams could see him and he stated in a loud voice in sum and substance, that the "narcotics run was not ready yet." There was no dispute that this is what Respondent uttered to Williams. Williams felt that the tone with which Respondent replied to her inquiry was disrespectful. Respondent explained that the station house was noisy at the time. He was working the midnight tour, the members of the service from the day tour were still in the command making noise and he simply raised his voice so that Williams could hear him. By all accounts, Respondent's reply was not laced with profanity or condescending remarks. He did not disobey an order and by his own testimony, he did not intend to be discourteous to Williams.

Williams testified that because of the "history" she had with Respondent, she thought his tone was inappropriate with her. When questioned during cross-examination if that remark had been made in the same tone by someone else would she have reacted in the same way, Williams had a different response. She testified that if the comment had been made by someone who she did not have a "history" with, she would have pulled the member to the side and addressed the tone of voice issue.

Based on Williams' assessment of this situation, it was based more on her "history" with Respondent and issuing him Command Disciplines in the past for his interaction with her, than the substance of the words that were used on this particular

incident date that caused Williams to feel that Respondent's tone in making a run of the mill statement during the midnight tour in that station house was inappropriate. Both Respondent and Williams agreed that they were about 20 feet apart from each other when Respondent made the statement and that the station house did have at least ten members of the service in the vicinity of the desk.

Accordingly, based on the evidence adduced at this trial, Respondent's tone in his statement to Williams in the command where at least ten members of the service were in the area, Respondent raised his voice so that Williams could hear his response to a routine concern did not amount to misconduct in this instance.

Accordingly, Respondent is found Not Guilty of Specification No. 3.

PENALTY

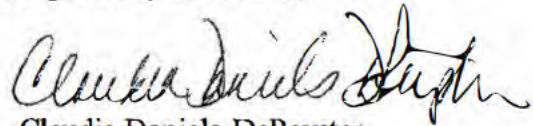
In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974). Respondent was appointed to the Department on August 30, 1993. Information from his personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

Respondent has been found Guilty of being absent without leave from his assignment without authority on August 27, and 28, 2009, and absent from his assignment without permission or police necessity while on duty on September 13, 2009 for approximately 40 minutes. The Assistant Department Advocate asked for a penalty of the forfeiture of 30 vacation days, but this penalty recommendation included Specification No. 3 where this Court made a recommendation of no misconduct.

In Disciplinary Case No. 2249/10, approved June 19, 2012, a 17-year police officer with no prior disciplinary record forfeited 20 vacation days after a mitigation hearing for being absent without leave for a full tour of duty. He explained that when he attempted to leave for work, he had to retreat because his snowy Orange County street had not been plowed. When questioned the next day about his absence, he became loud and argumentative with a supervisor. In Disciplinary Case No. 2547/10, approved June 24, 2012, a 19-year police officer with two prior adjudications forfeited 15 vacation days after a mitigation hearing for being absent from his assignment for two hours and 25 minutes, failing to submit a Leave of Absence Report for lost time, and failing to maintain his Activity Log with respect to a radio run and the time his tour commenced.

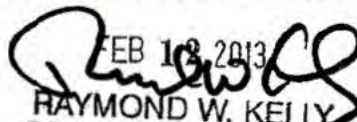
In light of the cited cases and Respondent's service record, it is recommended that Respondent forfeit 25 vacation days.

Respectfully submitted,



Claudia Daniels-DePeyster
Assistant Deputy Commissioner Trials

APPROVED



FEB 13 2013
RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER FERNANDO COLON
TAX REGISTRY NO. 903652
DISCIPLINARY CASE NO. 2010-2042

In 2011 and 2010, Respondent received an overall rating of 3.5 “Above Competent” on his annual performance evaluation. In 2009, he received a rating of 3.0 “Competent.” Respondent has received five Excellent Police Duty Medals in his career to date.



Respondent has no prior formal disciplinary record.

For your consideration.



Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials